

the party is unlawfully precluded by that inferior tribunal, corporation, board, or person.” (Code Civ. Proc. §1085.)

Petitioner’s prayer for a writ of mandate is based exclusively on allegations that Respondent violated Government Code section 54954.6. (See FAP at ¶¶ 5-13, 19, and p.11:17-21.) The documents incorporated into the FAP as exhibits reinforce this conclusion. (See Petition at Exh. E, FAP at ¶ 16.)

The parties are in accord that all of Respondent’s acts that are the subject of the FAP relate to the adoption of a special tax, as opposed to a general tax or increased assessment. (See FAP at 11:5-8, Support Memo at 8:13, Opposition at 5:19-21.) The Court finds that, by its plain language, Government Code section 54954.6 applies only to general taxes and assessments, and not to special taxes as defined by the California Constitution, Article XIII C, section 1, subdivision (d). Petitioner presents no authority extending the provisions of 54954.6 to the adoption of special taxes.

Based on the foregoing, the FAP fails to identify “an act which the law specially enjoins, as a duty resulting from an office, trust, or station” which Respondent has failed to undertake, or “the use and enjoyment of a right or office to which [Petitioner] is entitled, and from which [Petitioner] is unlawfully precluded by [Respondent].” (Code Civ. Proc. §1085.)

Petitioner argues that even if the foregoing were true, “Respondent fails to explain why the notice requirement [sic] of other statutory and constitutional provisions do not apply with these circumstances.” (Opposition at 6:2-4.) Petitioner does not, however, cite to any allegation in the FAP that Respondent violated any such “notice requirement of other statutory or constitutional provisions.” (Id. at 6:2-8:16.) The remainder of Petitioner’s arguments cite to broad sections of code and entire articles of the California constitution. (See id. at 6:4-8 [citing “the balance of the Brown Act, Government Code §§ 54950, et seq.” and “California Constitution, Article XIII C and D”].) Petitioner’s reference to “other statutory or constitutional provisions” and his citations are too broad and abstract to permit the Court to identify factual allegations in the FAP that would support Petitioner’s prayer for a writ of mandate pursuant to this argument.

For the foregoing reasons, Respondent’s demurrer is SUSTAINED.

Generally, it is an abuse of discretion for a court to deny leave to amend where there is any reasonable possibility that a Petitioner can state a good cause of action. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 349.) However, the pleading party bears the burden of showing such reasonable possibility. (Ibid.) The Court finds a reasonable possibility that Petitioner can state a good cause of action based on Petitioner’s suggestion that “notice requirement[s] of other statutory and constitutional provisions” may apply. For this reason, the demurrer is sustained with 10 days’ leave to amend.

The clerk shall provide notice of this ruling to the parties forthwith. Respondent to prepare a formal Order pursuant to Rule of Court 3.1312 in conformity with this ruling.

9:00 AM      21CV45171      OSC for TRO and Preliminary Injunction

02/09/2021

Ptff/Pet:      Brumbaugh, Allen

Atty:      Axelrod, David L

Def/Res:      Appaloosa Road Community Service District

Atty:      Calaveras County Counsel

TENTATIVE RULING: Petitioner’s application for a temporary restraining order and stay, based on the allegations in the First Amended Petition, is MOOT based on the Court’s ruling sustaining Respondent’s Demurrer to the First Amended Petition.

The clerk shall provide notice of this ruling to the parties forthwith. Respondent to prepare a formal Order pursuant to Rule of Court 3.1312 in conformity with this ruling.